

2:00 PM

LINE 4

25-CIV-01884

GEORGINA KOCH, ET AL. VS. KILISTINA D FAKAHAUA PETELO, ET AL.

GEORGINA KOCH
KILISTINA D FAKAHAUA PETELO

GERALD H SCHER

MOTION FOR AN ORDER TO COMPEL PLAINTIFF GEORGINA KOCH'S FURTHER RESPONSES TO SPECIALLY PREPARED INTERROGATORIES, SET NO. ONE

TENTATIVE RULING:

Defendant Valco Cincinnati, Inc.'s Unopposed Motion for an Order to Compel Plaintiff Georgina Koch's Further Responses to Specially Prepared Interrogatories, Set No. One, is GRANTED.

If a party to whom interrogatories are directed fails to serve a timely response, the party waives all objections and the propounding party may move for an order compelling a response. (Code Civ. Proc., § 2030.290, subds. (a), (b).) When a response has been provided, a propounding party may move for an order compelling a further response if the party deems (1) an answer is evasive or incomplete; (2) a referral to documents is unwarranted or inadequate; or (3) an objection is without merit or too general. (*Id.*, at § 2030.300, subd. (a).)

On April 29, 2025, Defendant Valco Cincinnati, Inc. ("Valco") served its first set of specially prepared interrogatories on Plaintiff Georgina Koch (hereafter, "Georgina," as the plaintiffs in this matter share a surname, no disrespect is intended). (Mar. 23, 2026 Motion to Compel Further Responses, pp. 8–95 ("Henry Decl."), ¶ 2, exh. A.) Georgina failed to provide a timely response. (*Id.*, at ¶ 8.) Eventually, on December 23, 2025, Georgina served a verified response to 'special interrogatories.' (*Id.*, at exh. B.)

It is fairly obvious, however, that the special interrogatories to which Georgina responded were not the forty-one in the set propounded to her but the twenty-five in the separate set propounded to her co-plaintiff. The response sets out the (incorrect) text of each interrogatory purportedly being answered and fails to answer any interrogatories past the twenty-fifth. (See Henry Decl., exh. B; cf. *id.*, at exhs. A, C.) One might argue this response is not a response to the subject interrogatories at all, but at the very least, the response is not "as complete and straightforward as the information reasonably available to the responding party permits" (*id.*, at § 2030.220, subd. (a)) and therefore "evasive and incomplete" (*id.*, at § 2030.300, subd. (a)(1)). When matched with the real interrogatories, the answers to nos. 7–25 are non-sequiturs, and no answers were provided to nos. 26–41 at all.

Accordingly, the motion is GRANTED. Georgina shall serve a further, code-compliant response to the first set of special interrogatories propounded to her by Valco no later than twenty (20) days after service of written notice of entry of the formal order.

No sanctions were requested and thus none are awarded.

Additionally, the papers filed in support of the motion contain unredacted social security numbers in violation of in violation of rule 1.201(a) of the California Rules of Court. Valco is ordered to file a redacted copy of the motion that complies with the California Rules of Court no later than five (5) days after entry of the formal order. The clerk of the court is to place the original, unredacted copy under seal.

If the tentative ruling is uncontested, it shall become the order of the court. Thereafter, counsel for Defendant Valco Cincinnati, Inc. shall prepare, for the court's signature, a written order consistent with this ruling, pursuant to California Rules of Court, rule 3.1312, and shall provide written notice of the ruling to all parties who have appeared in the action, as required by law and by the California Rules of Court.

2:00 PM

LINE 5

25-CLJ-05691

AMERICAN EXPRESS NATIONAL BANK VS YARON ASHER

AMERICAN EXPRESS NATIONAL BANK
YARON ASHER

AARON N. BALDARO
PRO SE

DEFENDANT'S MOTION FOR SANCTIONS FOR FRAUD ON THE COURT, FALSE PROOF OF SERVICE, MISCONDUCT BY PLAINTIFF'S COUNSEL AND PROCESS SERVER, AND DIRECT LIABILITY OF PLAINTIFF AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Defendant Aaron Yasher's ("Defendant") Motion for Sanction is DENIED.

Procedural background

Plaintiff American Express National Bank ("Plaintiff") filed this breach of contract action against Defendant on July 28, 2025. Thereafter, Defendant filed and served a Motion to Quash Service of Summons, a Motion to Strike the Proof of Service of the Summons and Related Filings, and a Motion to Dismiss the Complaint for Lack of Personal Jurisdiction. On March 3, 2026, the court denied Defendant's Motion to Quash and Motion to Strike, and it denied as moot Defendant's Motion to Dismiss.

On March 25, 2026, Defendant filed and served a Motion for Reconsideration of Order Denying Motion to Quash Service of Summons. Defendant's reconsideration motion argued that the process server, Stacey Soloman ("Soloman"), could not have served Defendant with the summons and complaint as stated in the proof of service. The court denied the reconsideration motion.

Defendant's Motion for Sanctions

Defendant now moves for sanctions pursuant to Code of Civil Procedure sections 128.5, 128.7, 128, subdivision (a)(4), and 177.5. Defendant once again argues that he could not have been served with the summons and complaint as claimed in the proof of service, and therefore he seeks sanctions based on a purported fraud by Soloman, Plaintiff's counsel and Plaintiff for the proof of service and opposition to Defendant's Motion to Quash.

Code of Civil Procedure Sections 128.5 and 128.7

Code of Civil Procedure section 128.5 authorizes the court to "order a party, the party's attorney, or both, to pay the reasonable expenses, including attorney's fees, incurred by another party as a result of actions or tactics, made in bad faith, that are frivolous or solely intended to cause unnecessary delay." (Code Civ. Proc., § 128.5, subd. (a).) "Frivolous" is defined as "totally and
